

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 918

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING SECTION 33-5502, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE CREATION OF THE IDAHO DIGITAL LEARNING ACADEMY AND TO MAKE TECHNICAL CORRECTIONS; REPEALING SECTION 33-5503, IDAHO CODE, RELATING TO THE ACADEMY BOARD OF DIRECTORS; AMENDING CHAPTER 55, TITLE 33, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 33-5503, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE ACADEMY BOARD OF DIRECTORS; AMENDING SECTION 33-5504, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE DUTIES OF THE ACADEMY BOARD OF DIRECTORS AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 33-5505, IDAHO CODE, TO REVISE DEFINITIONS AND TO DEFINE TERMS; AMENDING SECTION 33-1020, IDAHO CODE, TO REVISE PROVISIONS REGARDING IDAHO DIGITAL LEARNING ACADEMY FUNDING; AMENDING SECTION 33-4602, IDAHO CODE, TO REVISE PROVISIONS REGARDING ADVANCED OPPORTUNITIES; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 33-5502, Idaho Code, be, and the same is hereby amended to read as follows:

33-5502. CREATION -- LEGISLATIVE FINDINGS -- GOAL. (1) There is hereby created the Idaho digital learning academy, a ~~public school choice~~ learning environment ~~which that~~ joins the best technology with the best instructional practices. The Idaho digital learning academy as provided for in this chapter, is not a single department of state government unto itself, nor is it a part of any of the twenty (20) departments of state government authorized by section 20, article IV, of the constitution of the state of Idaho, or of the departments prescribed in section 67-2402, Idaho Code. It is legislative intent that the Idaho digital learning academy operate and be recognized not as a state or local agency or department, but as a governmental ~~an~~ entity whose creation has been authorized by the state, ~~much in the manner as other single purpose districts.~~

(2) The legislature finds that it is in the best public interest to create the Idaho digital learning academy based on findings that indicate:

(a) Technology continues to impact ~~all facets of life, including the education of students of school age and adult learners~~ the education of students in this state;

(b) Systems for delivery of education are as diverse as the learners; and

(c) ~~Public school systems~~ Idahoans are seeking high quality educational choices ~~within the public system,~~ and schools and other education providers are aligning curriculum and assessment with state achievement standards; ~~and.~~

~~(d) The development of a comprehensive digital learning environment is cost prohibitive for individual school districts.~~

(3) The goal of the digital learning academy is to provide choice, accessibility, flexibility, quality, and equity in curricular offerings for students in this state. The digital learning academy shall function as a resource to fill instructional gaps and is not intended to supplant regularly scheduled courses or full instructional programs offered by a student's local school district or public charter school. Courses offered shall include credit recovery, dual credit, courses not offered in small or rural school districts, courses required by the state of Idaho for graduation, and overload courses.

SECTION 2. That Section 33-5503, Idaho Code, be, and the same is hereby repealed.

SECTION 3. That Chapter 55, Title 33, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 33-5503, Idaho Code, and to read as follows:

33-5503. ACADEMY BOARD OF DIRECTORS. On July 1, 2026, the academy board of directors shall be disbanded and reestablished as follows:

(1) There is hereby created an academy board of directors that shall be responsible for the development and oversight of the Idaho digital learning academy.

(2) The academy board of directors shall be comprised of nine (9) voting members as follows:

(a) Three (3) members shall be superintendents, each selected by the state board of education to three (3) year terms and each representing two (2) educational classification regions as established by the state board of education:

(i) One (1) superintendent shall be selected from among the superintendents in regions 1 and 2 on a rotating term basis between the two (2) regions;

(ii) One (1) superintendent shall be selected from among the superintendents in regions 3 and 4 on a rotating term basis between the two (2) regions; and

(iii) One (1) superintendent shall be selected from among the superintendents in regions 5 and 6 on a rotating term basis between the two (2) regions.

(b) One (1) member shall be a school principal, selected to a three (3) year term by the governing body of the Idaho association of school administrators;

(c) Two (2) members shall be citizens at-large who are not professional educators, appointed by the members of the academy board, each to a term of three (3) years;

(d) One (1) member shall be the state superintendent of public instruction, or a designee, who shall be a voting member and shall serve concurrently with the term of office to which the state superintendent is elected;

(e) One (1) member shall be a current member of the house of representatives, as appointed by the speaker of the house of representatives, and shall serve concurrently with the term of office; and

(f) One (1) member shall be a current member of the senate, as appointed by the president pro tempore of the senate, and shall serve concurrently with the term of office.

(3) For purposes of establishing staggered terms of office, the initial term of office for one (1) of the district superintendent positions shall be one (1) year and the other two (2) shall be three (3) years. The initial term of office for the principal position shall be one (1) year. The initial terms of office for the citizen positions shall be three (3) years. The initial terms of office for the legislative positions shall be two (2) years.

(4) No member shall serve for more than two (2) consecutive full terms. Members of the board who are appointed to fill vacancies that occur prior to the expiration of a former member's full term shall serve the unexpired portion of such term.

(5) The board shall meet in person at least three (3) times annually.

SECTION 4. That Section 33-5504, Idaho Code, be, and the same is hereby amended to read as follows:

33-5504. DUTIES OF THE ACADEMY BOARD OF DIRECTORS. The board shall be responsible for ensuring that academy procedures and courses are in compliance with the rules of the state board of education and applicable statutes of the state of Idaho. In addition, the board shall:

(1) Recommend policies to be established by rule of the state board for effecting the purposes of this chapter.

(2) Employ or contract with staff as necessary and purchase such supplies and equipment as are necessary to implement the provisions of this chapter, which purchases shall be exempt from the state procurement act in chapter 92, title 67, Idaho Code. The percentage of personnel costs spent on staff classified as administration shall not exceed thirty percent (30%) of the total budget.

(3) ~~To enter~~ Enter into contracts with any other governmental or public agency whereby the board agrees to render services to or for such agency in exchange for a charge reasonably calculated to cover the costs of rendering such service.

(4) ~~To accept~~ Accept, receive, and utilize any gifts, grants, or funds and personal and real property that may be donated to it for the fulfillment of the purposes outlined in this chapter.

(5) Employ or contract with necessary faculty and teaching staff who are fully certificated Idaho teachers or administrators, to design and deliver planned curriculum content. The academy shall be exempt from the provisions of sections 33-513, 33-514, 33-514A, 33-515 and 33-515A, Idaho Code, and shall be exempt from chapter 53, title 67, Idaho Code. All teaching and educational staff of the academy shall be exempt, at will employees. The number of such staff shall largely be dictated by the number of courses under development, the number of courses offered, and the number of students participating in academy programs.

(6) Obtain ~~housing~~ office space where actual operations of the academy are conducted by academy staff.

(7) Contract with a service provider for delivery of academy courses online which shall be accessible twenty-four (24) hours a day, seven (7) days a week.

(8) Ensure that the academy is accredited as established by rule of the state board of education.

(9) Develop policy for earning credit in courses based on mastery of the subject, demonstrated competency, and meeting the standards set for each course.

(10) Provide for articulating the content of certain high school courses with college and university courses in order to award both high school and undergraduate college credit.

(11) Develop policies and practices ~~which~~ that provide strict application of time limits for completion of courses.

(12) Develop policies and practices on accountability, both by the student and the teacher, and in accordance with the provisions of section 33-5507, Idaho Code.

(13) Develop policies and practices that prioritize courses provided in section 33-5502, Idaho Code.

~~(13) (14) Manage the moneys disbursed to the academy board from the superintendent received by the academy.~~

~~(14) (15) Set~~ Subject to approval by the state board of education, set fees charged to school districts for student participation; fees charged for summer school; and fees charged to students and adults for professional development offerings any user of academy courses, including but not limited to public school districts, public charter schools, private schools, individual students, and other public or private entities. Fees for all courses required by the state department of education for graduation shall be no more than forty dollars (\$40.00). Fees for all courses not required for graduation shall be at least one hundred dollars (\$100). Fees shall offset the total state reimbursement, not to exceed four hundred forty-five dollars (\$445).

~~(15) (16) Contract with a certified public accounting firm to conduct an annual audit of the Idaho digital learning academy and contract with the legislative services office to conduct a financial audit of the Idaho digital learning academy every three (3) years.~~

SECTION 5. That Section 33-5505, Idaho Code, be, and the same is hereby amended to read as follows:

33-5505. DEFINITIONS. As used in this chapter:

(1) "Academy board," also referred to in this chapter as "the board" means the board of directors of the Idaho digital learning academy as such board is created in section 33-5503, Idaho Code.

~~(2) "Host district" means an Idaho school district where the fiscal operations of the Idaho digital learning academy are housed until January 1, 2009.~~

(2) "Custom section" means an Idaho digital learning academy course in which all enrollments are from one (1) school district or public charter school.

(3) "Emergency clause" means that a custom section is reimbursable when an unexpected departure of the teacher of record occurs and reimbursement

1 is approved by the board or when, after documented recruitment efforts are
2 made, the school is unable to hire a qualified teacher for the position.

3 ~~(3)~~ (4) "Idaho digital learning academy" means an online educational
4 course delivery program ~~organized as a that is~~ fully accredited ~~school~~ with
5 statewide capabilities for the exclusive purpose of delivering accredited
6 courses to Idaho resident students at no cost to the student unless the stu-
7 dent enrolls in additional courses beyond full-time enrollment. ~~Partici-~~
8 ~~pation in the academy by public school students shall be in compliance with~~
9 ~~academy and local school district policies. Adult learners and out-of-state~~
10 ~~students shall pay tuition commensurate with rates established by the state~~
11 ~~board with the advice of the superintendent, and such funds shall be included~~
12 ~~in the budget and audit of the academy's fiscal records.~~ in grades 6 through
13 12.

14 ~~(4)~~ (5) "State board" means the Idaho state board of education. The
15 board is authorized and directed, with the advice and recommendation of the
16 academy board of directors, to promulgate rules to implement the provisions
17 of this chapter.

18 ~~(5)~~ (6) "Superintendent" means the Idaho state superintendent of pub-
19 lic instruction.

20 SECTION 6. That Section 33-1020, Idaho Code, be, and the same is hereby
21 amended to read as follows:

22 33-1020. IDAHO DIGITAL LEARNING ACADEMY FUNDING.

23 (1)(a) An amount of four hundred forty-five dollars (\$445) per en-
24 rollment shall be distributed to support the Idaho digital learning
25 academy, created pursuant to chapter 55, title 33, Idaho Code. For the
26 purposes of this section, an "enrollment" shall be counted each time
27 an Idaho school age child enrolls in an Idaho digital learning academy
28 ~~class course~~ and continues to be enrolled in such ~~class course~~ past the
29 deadline to withdraw, where such withdrawal would not result in the
30 ~~class course~~ appearing on such child's transcript in any way. If a stu-
31 dent disenrolls from an Idaho digital learning academy course within
32 the withdrawal window, the fee shall be returned to the payer. A single
33 child enrolled in multiple ~~classes~~ courses shall count as multiple en-
34 rollments. Summer enrollments shall be included in the fiscal year that
35 begins that summer. A registered course shall be eligible for state
36 funding only if:

37 (i) The student is enrolled in an Idaho school district or public
38 charter school that is not entirely virtual;

39 (ii) The student is in grades 6 through 12, but for students in
40 grades 6 through 8, the registered course must be for credit recov-
41 ery and remediation;

42 (iii) The course is not a driver's education course; and

43 (iv) The student is not enrolled in a custom section unless the
44 emergency clause is applicable.

45 (b) If a student wants to enroll in an Idaho digital learning academy
46 course that does not meet the criteria for state funding under this sec-
47 tion, such student may enroll in such course if the school district or
48 public charter school pays the fees for the course as set by the state
49 board of education.

1 (c) If a student wants to enroll in an Idaho digital learning academy
 2 course to earn dual credit pursuant to section 33-4602, Idaho Code,
 3 such student shall pay for the course or use money available from the
 4 advanced opportunities program.

5 (2) The state department of education shall make an estimated distri-
 6 bution of funds to the Idaho digital learning academy by no later than July
 7 31 of each fiscal year, consisting of eighty percent (80%) of the estimated
 8 funding for the fiscal year. The balance of all remaining funds to be dis-
 9 tributed, pursuant to the calculations in this section, shall be distributed
 10 by no later than May 15 of the same fiscal year. The state department of
 11 education shall reconcile the enrollments prior to the May 15 payment and
 12 withhold or recover any costs necessary to align the funding with verified
 13 enrollments. The joint finance-appropriations committee shall consider
 14 adjusting the per enrollment amount each legislative session by a percent-
 15 age increase equal to the percentage increase approved for salary increases
 16 for instructional and pupil service staff pursuant to section 33-1004B,
 17 Idaho Code, and for administrative and classified staff pursuant to section
 18 33-1004E, Idaho Code.

19 (3) The academy board of directors shall report to the state board of
 20 education during the 2027 legislative session on the status of courses and
 21 provide recommendations and a strategic plan on how to manage digital learn-
 22 ing throughout the state.

23 SECTION 7. That Section 33-4602, Idaho Code, be, and the same is hereby
 24 amended to read as follows:

25 33-4602. ADVANCED OPPORTUNITIES -- RULEMAKING. (1) Students attend-
 26 ing public schools in Idaho will be eligible for four thousand six hundred
 27 twenty-five dollars (\$4,625) to use toward overload courses, dual credits,
 28 postsecondary credit-bearing examinations, career technical certificate
 29 examinations, career technical education workforce training courses, col-
 30 lege entrance examinations, and preliminary college entrance examinations.
 31 Students may access these funds in grades 7 through 12 for:

32 (a) Overload courses, the distribution of which may not exceed two hun-
 33 dred twenty-five dollars (\$225) per overload course. A student shall
 34 take and successfully be completing a full credit load within a given
 35 school year to be eligible for funding of an overload course. An over-
 36 load course shall be taken for high school credit to be eligible for
 37 funding. To qualify as an eligible overload course for the program, the
 38 course shall:

39 (i) Be offered by a provider accredited by the organization that
 40 accredits Idaho public schools; and

41 (ii) Be taught by an individual certified to teach the grade and
 42 subject area of the course in Idaho.

43 (b) Eligible dual credits, the distribution of which may not exceed
 44 seventy-five dollars (\$75.00) per one (1) dual credit hour. Dual credit
 45 courses shall be offered by a regionally accredited postsecondary in-
 46 stitution. To qualify as an eligible dual credit course, the course
 47 shall be a credit-bearing 100-level course or higher.

(c) Courses offered through the Idaho digital learning academy. Such courses shall not exceed the course enrollment cost as provided in section 33-1020, Idaho Code.

~~(e)~~ (d) Eligible postsecondary credit-bearing or career technical certificate examinations. The state department of education shall maintain a list of eligible exams and costs. Eligible costs include the cost of the examination, proctor fees, and administrative fees. Eligible examinations include:

- (i) Advanced placement (AP);
- (ii) International baccalaureate (IB);
- (iii) College-level examination program (CLEP); and
- (iv) Career technical education examinations that lead to an industry-recognized certificate, license, or degree.

~~(d)~~ (e) CTE workforce training courses, such as federally registered apprenticeships. The state department of education shall collaborate with the division of career technical education to maintain a list of eligible training courses and costs. Eligible training courses shall:

- (i) Be provided by an Idaho public technical college;
- (ii) Lead to an industry-recognized certificate, license, or degree;
- (iii) Be required training for occupations deemed regionally in demand;
- (iv) Be courses that are not otherwise available at the student's high school; and
- (v) Allow high school-aged students to participate.

~~(e)~~ (f) College entrance examinations and preliminary college entrance examinations. The state department of education shall maintain a list of eligible examinations and costs. Eligible costs include the cost of the examination, proctor fees, and administrative fees. Eligible examinations include the SAT, the PSAT, the ACT, and other similar examinations identified by the department.

(2) A student who has earned fifteen (15) postsecondary credits using the advanced opportunities program and who wishes to earn additional credits shall first identify his postsecondary goals. Advisors shall counsel any student who wishes to take dual credit courses that the student should ascertain for himself whether the particular postsecondary institution that he desires to attend will accept the transfer of coursework credits under this section.

(3) These moneys may be used to pay to the student an amount not to exceed the price of such courses and examinations pursuant to the limitations stated in this section. These moneys shall not supplant existing program funds. Payments made under this section shall be made from the moneys appropriated for the educational support program. No later than January 15, the state department of education shall annually report to the education committees of the senate and the house of representatives details regarding the number of students benefiting from assistance with the cost of overload courses, dual credit courses and examinations, the number of credits awarded, and amounts paid pursuant to this section during the previous school year.

1 (4) The board of each public school may set forth criteria by which a
2 student may challenge a course. If a student successfully meets the crite-
3 ria set forth by the board of the public school, then the student shall be
4 counted as having completed all required coursework for that course. The
5 public school, with the exception of Idaho tribal schools, shall be funded
6 for such students based on either actual hours of attendance or the course
7 that the student has successfully passed, whichever is more advantageous to
8 the public school, up to the maximum of one (1) full-time student.

9 (5) Any student who successfully completes public school grades 9
10 through 12 curriculum at least one (1) year early shall be eligible for an
11 advanced opportunities scholarship. The scholarship may be used for edu-
12 cational costs at any Idaho public postsecondary educational institution.
13 The amount of the scholarship shall equal thirty-five percent (35%) of the
14 statewide average daily attendance-driven funding per enrolled pupil for
15 each year of grades 9 through 12 curriculum avoided by the student's early
16 graduation. Each public school shall receive an amount equal to each such
17 awarded scholarship for each student that graduates early from that public
18 school. Students shall apply for the scholarship within two (2) years of
19 graduating from a public school.

20 (6) The state department of education shall reimburse public schools,
21 the Idaho digital learning academy, or public postsecondary educational
22 institutions, as applicable, for such costs, up to the stated limits, within
23 one hundred twenty-five (125) days of receiving the necessary data upon
24 which reimbursements may be paid. The submission method and timelines of
25 reimbursement data shall be determined by the state department of education.
26 Payments will be made only for activity occurring and reported within each
27 fiscal year.

28 (7) For public funding purposes, average daily attendance shall be
29 counted as normal for students participating in dual credit courses pursuant
30 to this section.

31 (8) If a student fails to earn credit or successfully complete a course
32 or exam for which the department has paid a reimbursement, the student shall
33 pay for and successfully earn credit or pay for an examination before the
34 state department of education pays any further reimbursements for the stu-
35 dent. Except for exams allowed under subsection (1) ~~(e)~~ (f) of this section,
36 repeated and remedial courses or examinations are not eligible for funding
37 under this section.

38 (9) The state department of education shall reimburse community col-
39 leges or counties, as applicable, for any out-of-district county tuition
40 pursuant to section 33-2110A, Idaho Code. Such reimbursements shall be in
41 an amount not to exceed fifty dollars (\$50.00) per credit hour and only for
42 dual credit courses taken pursuant to this section. Community colleges may
43 directly enroll a homeschool student for dual enrollment courses pursuant to
44 this section. Such direct enrollments shall be coordinated with the state
45 board of education.

46 (10) Public schools shall establish timelines and requirements for par-
47 ticipation in the program, including implementing procedures for the appro-
48 priate transcription of credits, reporting of program participation and fi-
49 nancial transaction requirements. Public schools shall make reasonable ef-
50 forts to ensure that any student who considers participating in the program

1 also considers the challenges and time necessary to succeed in the program,
2 and schools shall make reasonable efforts to include guidance on how the stu-
3 dent's participation in the program contributes to prospective college and
4 career pathways. Such efforts by the district shall be performed prior to a
5 student participating in the program and throughout the student's involve-
6 ment in the program.

7 (11) Policies and procedures for participating in the program estab-
8 lished by the public school shall be such that students have an opportunity
9 to participate in the program and meet district-established timelines and
10 requirements for financial transactions, transcribing credits and state
11 department of education reporting. Participation in this program requires
12 parent and student agreement to program requirements and completion of the
13 state department of education's participation form documenting the program
14 requirements.

15 (12) Parents of participating students may enroll their child in any
16 eligible course, with or without the permission of the public school in which
17 the student is enrolled. Tribal school students shall follow their schools'
18 enrollment policies and procedures. Public school personnel shall assist
19 parents in the process of enrolling students in such courses. Each partic-
20 ipating student's high school transcript at the public school at which the
21 student is enrolled shall include the credits earned and grades received by
22 the student for any overload or dual credit courses taken pursuant to this
23 section. For an eligible course to be transcribed as meeting the require-
24 ments of a core subject as identified in administrative rule, the course
25 shall meet the approved content standards for the applicable subject and
26 grade level.

27 (13) Participating public schools shall collaborate with Idaho public
28 postsecondary educational institutions to assist students who seek to par-
29 ticipate in dual credit courses or graduate from high school early by en-
30 rolling in postsecondary courses. Participating school districts, charter
31 schools and Idaho public postsecondary educational institutions shall re-
32 port to the state board of education and the education committees of the sen-
33 ate and the house of representatives any difficulties or obstacles they ex-
34 perience in providing assistance to participating students.

35 (14) The state board of education may promulgate rules to implement the
36 provisions of this chapter.

37 SECTION 8. An emergency existing therefor, which emergency is hereby
38 declared to exist, this act shall be in full force and effect on and after
39 July 1, 2026.